

EVICTION ORDERS

Effective date of order

80 (1) If a notice of termination of a tenancy has been given and the landlord has subsequently applied to the Board for an order evicting the tenant, the order of the Board evicting the tenant may not be effective earlier than the date of termination set out in the notice. 2006, c. 17, s. 80 (1).

Exception, notice under s. 63 or 66

(2) Despite subsection (1), an order evicting a tenant may provide that it is effective on a date specified in the order that is earlier than the date of termination set out in the notice of termination if,

(a) the order is made on an application under section 69 based on a notice of termination under clause 63 (1) (a) and the Board determines that the damage caused was significantly greater than the damage that was required by that clause in order to give the notice of termination; or

(b) the order is made on an application under section 69 based on a notice of termination under clause 63 (1) (b) or subsection 66 (1). 2006, c. 17, s. 80 (2).

Expiry date of order

81 An order of the Board evicting a person from a rental unit expires six months after the day on which the order takes effect if it is not filed within those six months with the sheriff who has territorial jurisdiction where the rental unit is located. 2006, c. 17, s. 81.

Tenant issues

82 (1) At a hearing of an application by a landlord under section 69 for an order terminating a tenancy and evicting a tenant based on a notice of termination under section 59, the Board shall permit the tenant to raise any issue that could be the subject of an application made by the tenant under this Act if the tenant,

(a) complies with the requirements set out in subsection (2); or

(b) provides an explanation satisfactory to the Board explaining why the tenant could not comply with the requirements set out in subsection (2). 2020, c. 16,

Sched. 4, s. 16.

Note: On a day to be named by order of the Lieutenant Governor in Council, subsection 82 (1) of the Act is repealed and the following substituted: (See: 2025, c. 14, Sched. 12, s. 6 (1))

Tenant issues

(1) At a hearing of an application by a landlord under section 69 for an order terminating a tenancy and evicting a tenant based on a notice of termination under section 59, the Board shall permit the tenant to raise any issue that could be the subject of an application made by the tenant under this Act if the tenant complies with the requirements set out in subsection (2). 2025, c. 14, Sched. 12, s. 6 (1).

Requirements to be met by tenant

(2) The requirements referred to in subsection (1) are the following:

1. The tenant shall give advance notice to the landlord of the tenant's intent to raise the issue at the hearing.
2. The notice shall be given within the time set out in the Rules.
3. The notice shall be given in writing and shall comply with the Rules. 2020, c. 16, Sched. 4, s. 16.

Note: On a day to be named by order of the Lieutenant Governor in Council, subsection 82 (2) of the Act is amended by adding the following paragraphs: (See: 2025, c. 14, Sched. 12, s. 6 (2))

4. Unless the regulations provide otherwise, the tenant shall pay the following amounts to the landlord or, if the regulations so provide, into the Board:
 - i. Half of any rent arrears that were claimed in the application when it was filed.
 - ii. Such other amounts as may be prescribed.
5. The amounts specified in paragraph 4 shall be paid before the hearing and in accordance with any prescribed timelines.

Orders

(3) If a tenant raises an issue under subsection (1), the Board may make any order in respect of the issue that it could have made had the tenant made an application under this Act. 2020, c. 16, Sched. 4, s. 16.

Transition

(4) This section, as it reads on the day section 16 of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force, applies to any hearing held after that day that relates to an application that was filed before that day. 2020, c. 16, Sched. 4, s. 16.

Note: On a day to be named by order of the Lieutenant Governor in Council, subsection 82 (4) of the Act is repealed and the following substituted: (See: 2025, c. 14, Sched. 12, s. 6 (3))

Transition

(4) Subsection (1), as it read immediately before the day subsection 6 (1) of Schedule 12 to the *Fighting Delays, Building Faster Act, 2025* came into force, continues to apply to any application described in subsection (1) that was made before that day and has not been finally determined before that day, even if the hearing of the application is on or after that day. 2025, c. 14, Sched. 12, s. 6 (3).

Note: On a day to be named by order of the Lieutenant Governor in Council, section 82 of the Act is amended by adding the following subsection: (See: 2025, c. 14, Sched. 12, s. 6 (4))

Same

(5) Subsection (2), as it read the day before day subsection 6 (2) of Schedule 12 to the *Fighting Delays, Building Faster Act, 2025* came into force, continues to apply to any application described in subsection (1) that was made before that day and has not been finally determined before that day, even if the hearing of the application is on or after that day. 2025, c. 14, Sched. 12, s. 6 (4).

▼ Section Amendments with date in force (d/m/y)

Power of Board, eviction

83 (1) Upon an application for an order evicting a tenant, the Board may, despite any

other provision of this Act or the tenancy agreement,

(a) refuse to grant the application unless satisfied, having regard to all the circumstances, that it would be unfair to refuse; or

(b) order that the enforcement of the eviction order be postponed for a period of time. 2006, c. 17, s. 83 (1).

Note: On a day to be named by order of the Lieutenant Governor in Council, clause 83 (1) (b) of the Act is amended by adding “subject to any prescribed limitations or conditions” at the beginning. (See: 2025, c. 14, Sched. 12, s. 7)

Mandatory review

(2) If a hearing is held, the Board shall not grant the application unless it has reviewed the circumstances and considered whether or not it should exercise its powers under subsection (1). 2006, c. 17, s. 83 (2).

Circumstances where refusal required

(3) Without restricting the generality of subsection (1), the Board shall refuse to grant the application where satisfied that,

(a) the landlord is in serious breach of the landlord’s responsibilities under this Act or of any material covenant in the tenancy agreement;

(b) the reason for the application being brought is that the tenant has complained to a governmental authority of the landlord’s violation of a law dealing with health, safety, housing or maintenance standards;

(c) the reason for the application being brought is that the tenant has attempted to secure or enforce his or her legal rights;

(d) the reason for the application being brought is that the tenant is a member of a tenants’ association or is attempting to organize such an association; or

(e) the reason for the application being brought is that the rental unit is occupied by children and the occupation by the children does not constitute overcrowding. 2006, c. 17, s. 83 (3).

No eviction before compensation, residential occupation, demolition, etc.

(4) The Board shall not issue an eviction order in a proceeding regarding termination of a tenancy for the purposes of residential occupation, demolition, conversion to non-residential rental use, renovations or repairs until the landlord has complied with section 48.1, 49.1, 52, 54 or 55, as the case may be. 2017, c. 13, s. 17; 2020, c. 16, Sched. 4, s. 17 (1).

No eviction before compensation, repair or renovation

(5) If a tenant has given a landlord notice under subsection 53 (2) and subsection 54 (2) or (4) applies, the Board shall not issue an eviction order in a proceeding regarding termination of the tenancy until the landlord has compensated the tenant in accordance with subsection 54 (2) or (4), as applicable. 2006, c. 17, s. 83 (5); 2020, c. 16, Sched. 4, s. 17 (2).

Refusal for certain arrears of rent

(6) Without restricting the generality of subsections (1) and (2), if a hearing is held in respect of an application under section 69 for an order evicting a tenant based on arrears of rent arising in whole or in part during the period beginning on March 17, 2020 and ending on the prescribed date, in determining whether to exercise its powers under subsection (1) the Board shall consider whether the landlord has attempted to negotiate an agreement with the tenant including terms of payment for the tenant's arrears. 2020, c. 16, Sched. 4, s. 17 (3).

Application of subs. (6)

(7) Subsection (6) applies with respect to any application described in that subsection that,

(a) is made on or after the day subsection 17 (3) of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force; or

(b) was made before that day and was not finally determined before that day. 2020, c. 16, Sched. 4, s. 17 (3).

Same

(8) For greater certainty, subsection (6) applies whether or not a date has been prescribed for the purposes of that subsection. 2020, c. 16, Sched. 4, s. 17 (3).

▼ Section Amendments with date in force (d/m/y)

Expedited eviction order

84 Subject to clause 83 (1) (b), the Board shall, in an order made under section 69 based on a notice given under subsection 61 (1) that involves an illegal act, trade, business or occupation described in clause 61 (2) (a) or based on a notice given under section 63, 65 or 66, request that the sheriff expedite the enforcement of the order. 2006, c. 17, s. 84.

Effect of eviction order

85 An order evicting a person shall have the same effect, and shall be enforced in the same manner, as a writ of possession. 2006, c. 17, s. 85.

COMPENSATION FOR LANDLORD

Compensation, unit not vacated

86 A landlord is entitled to compensation for the use and occupation of a rental unit by a tenant who does not vacate the unit after his or her tenancy is terminated by order, notice or agreement. 2006, c. 17, s. 86.

Applications

Application for arrears of rent

87 (1) A landlord may apply to the Board for an order requiring a tenant or former tenant to pay arrears of rent if,

(a) the tenant or former tenant did not pay rent lawfully required under the tenancy agreement; and

(b) in the case of a tenant or former tenant no longer in possession of the rental unit, the tenant or former tenant ceased to be in possession on or after the day subsection 18 (1) of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force. 2020, c. 16, Sched. 4, s. 18 (1).

Application under subs. (1)

- (1.1) An application under subsection (1) may be made,
- (a) while the tenant is in possession of the rental unit; or
 - (b) no later than one year after the tenant or former tenant ceased to be in possession of the rental unit. 2020, c. 16, Sched. 4, s. 18 (1).

Tenant issues

- (2) Section 82 applies, with necessary modifications, to an application under subsection (1). 2006, c. 17, s. 87 (2).

Application for compensation for use and occupation of unit

- (3) A landlord may apply to the Board for an order requiring a tenant or former tenant to pay compensation for the use and occupation of the rental unit after a notice of termination or an agreement to terminate the tenancy has taken effect if,

- (a) the tenant or former tenant is or was in possession of the rental unit after the termination of the tenancy; and
- (b) in the case of a tenant or former tenant no longer in possession of the rental unit, the tenant or former tenant ceased to be in possession on or after the day subsection 18 (1) of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force. 2020, c. 16, Sched. 4, s. 18 (1).

Application under subs. (3)

- (3.1) An application under subsection (3) may be made,
- (a) while the tenant or former tenant is in possession of the rental unit; or
 - (b) no later than one year after the tenant or former tenant ceased to be in possession of the rental unit. 2020, c. 16, Sched. 4, s. 18 (1).

Amount of arrears of rent or compensation

- (4) In determining the amount of arrears of rent, compensation or both owing by a tenant in an order for termination of a tenancy and the payment of arrears of rent, compensation or both, the Board shall subtract from the amount owing the amount of any rent deposit or interest on a rent deposit that would be owing to the tenant on termination. 2006, c. 17, s. 87 (4); 2020, c. 16, Sched. 4, s. 18 (2).

NSF cheque charges

(5) On an application by a landlord under this section, the Board may include the following amounts in determining the total amount owing to a landlord by a tenant or former tenant in respect of a rental unit:

1. The amount of NSF cheque charges claimed by the landlord and charged by financial institutions in respect of cheques tendered to the landlord by or on behalf of the tenant or former tenant, to the extent the landlord has not been reimbursed for the charges.
2. The amount of unpaid administration charges in respect of the NSF cheques, if claimed by the landlord, that do not exceed the amount per cheque that is prescribed as a specified payment exempt from the operation of section 134. 2006, c. 17, s. 87 (5); 2020, c. 16, Sched. 4, s. 18 (3).

Application

(6) This section applies with respect to,

- (a) arrears of rent described in subsection (1), even if the arrears accrued before the day subsection 18 (1) of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force;
- (b) the use and occupation of the rental unit described in subsection (3), even if the use and occupation occurred before that day; and
- (c) charges described in subsection (5), even if the charges were incurred before that day. 2020, c. 16, Sched. 4, s. 18 (4).

Transition, court proceedings not affected

(7) Despite subsection 168 (2), the re-enactment of subsections (1) and (3) by subsection 18 (1) of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* does not affect any court proceeding for an order for the payment of arrears of rent or compensation for the use and occupation of the rental unit, or for the payment of both, that is commenced before the day that subsection comes into force and has not been finally determined before that day. 2020, c. 16, Sched. 4, s. 18 (4).

▼ Section Amendments with date in force (d/m/y)

Arrears of rent when tenant abandons or vacates without notice

88 (1) If a tenant abandons or vacates a rental unit without giving notice of termination in accordance with this Act and no agreement to terminate has been made or the landlord has not given notice to terminate the tenancy, a determination of the amount of arrears of rent owing by the tenant shall be made in accordance with the following rules:

1. If the tenant vacated the rental unit after giving notice that was not in accordance with this Act, arrears of rent are owing for the period that ends on the earliest termination date that could have been specified in the notice, had the notice been given in accordance with section 47, 96 or 145, as the case may be.
2. If the tenant abandoned or vacated the rental unit without giving any notice, arrears of rent are owing for the period that ends on the earliest termination date that could have been specified in a notice of termination had the tenant, on the date that the landlord knew or ought to have known that the tenant had abandoned or vacated the rental unit, given notice of termination in accordance with section 47, 96 or 145, as the case may be. 2006, c. 17, s. 88 (1).

Where landlord has given notice under s. 48, 49 or 50

(2) If a notice of termination has been given by the landlord under section 48, 49 or 50 and the tenant vacates the rental unit before the termination date set out in the notice without giving a notice of earlier termination or after giving a notice of earlier termination that is not in accordance with subsection 48 (3), 49 (4) or 50 (4), as the case may be, a determination of the amount of arrears of rent owing by the tenant shall be made as if arrears of rent are owing for the period that ends on the earlier of the following dates:

1. The date that is 10 days after,
 - i. the date the tenant gave notice of earlier termination, if the tenant vacated the rental unit after giving a notice of earlier termination that was not in accordance with subsection 48 (3), 49 (4) or 50 (4), as the case may be, or
 - ii. the date the landlord knew or ought to have known that the tenant had

vacated the rental unit, if the tenant vacated the rental unit without giving a notice of earlier termination.

2. The termination date set out in the landlord's notice of termination. 2006, c. 17, s. 88 (2).

New tenancy

(3) Despite subsections (1) and (2), if the landlord enters into a new tenancy agreement with a new tenant with respect to the rental unit, the tenant who abandoned or vacated the rental unit is not liable to pay an amount of arrears of rent that exceeds the lesser of the following amounts:

1. The amount of arrears of rent determined under subsection (1) or (2).
2. The amount of arrears of rent owing for the period that ends on the date the new tenant is entitled to occupy the rental unit. 2006, c. 17, s. 88 (3).

Minimization of losses

(4) In determining the amount of arrears of rent owing under subsections (1), (2) and (3), consideration shall be given to whether or not the landlord has taken reasonable steps to minimize losses in accordance with section 16. 2006, c. 17, s. 88 (4).

Application for compensation for interference with reasonable enjoyment, etc.

88.1 (1) A landlord may apply to the Board for an order requiring a tenant or former tenant to pay costs described in subsection (4) if,

(a) while the tenant or former tenant is or was in possession of the rental unit, the conduct of the tenant or former tenant, another occupant of the rental unit or a person permitted in the residential complex by the tenant or former tenant is or was such that it substantially interferes or interfered with,

- (i) the reasonable enjoyment of the residential complex for all usual purposes by the landlord, or
- (ii) another lawful right, privilege or interest of the landlord; and

(b) in the case of a tenant or former tenant no longer in possession of the rental unit, the tenant or former tenant ceased to be in possession on or after the day